

Mohit Sahney vs The State Of Uttar Pradesh on 18 September, 2023

Author: S. Ravindra Bhat

Bench: S. Ravindra Bhat

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IN THE SUPREME COURT OF INDIA
EXTRAORDINARY JURISDICTION

Special Leave Petition (Crl.)

No.286/2019

MOHIT SAHNEY & ANR.

Petitio

VERSUS

THE STATE OF UTTAR PRADESH & ANR.

Respond

WITH

Special Leave Petition (Crl.) No.12744/2023
(@Special Leave Petition (Crl.) Diary No.45408/2019)

O R D E R

1. Delay condoned in Special Leave Petition (Crl.) Dy. No.45408/2019.
2. These Special Leave Petitions are directed against an order of the High Court of Judicature at Allahabad refusing to quash the proceedings instituted against the petitioners under Section 406 of the Indian Penal Code (IPC). Respondent No.2 was accused for having committed offences punishable under Sections 498A, 406, 377, 384, 420 & 120B of the Indian Penal Code (IPC).
3. This Court had issued notice to the parties on 07th 11th 2019 and directed stay of further proceedings pending before the Additional Chief Judicial Magistrate, Gautam Budh Nagar, Uttar Pradesh.
4. The parties, during the pendency of the proceedings, have Date: 2023.10.04 17:32:56 IST Reason:

negotiated and arrived at an amicable settlement. The terms of the settlement are contained in a document, copy of which has been annexed to the joint application moved by them (Criminal Miscellaneous Petition No.179131/2023).

5. In terms of the settlement, the parties have resolved all their differences. The Respondent No.2 – husband has agreed to pay a total sum of 50,00,000/- to Petitioner No.2 – wife. The settlement also records the arrangement agreed to by the parties with respect to custody and visitation rights and further that the parties have agreed that their marriage be dissolved by this Court. The application, supported by the affidavits of the parties, who are present in Court (i.e. Petitioner No.2 – wife and Respondent No.2 – husband).

6. This Court has considered the application and is of the opinion that in terms of the settlement, the parties have agreed to end all their disputes finally. Accordingly, complaint case No.4212/2013 dated 21/11/2013 pending before the Additional Chief Judicial Magistrate, District Gautam Budh Nagar, Noida, U.P. and all proceedings emanating therefrom are hereby quashed.

7. The cases listed below filed by the parties against each other are pending before different Courts: ☐
Sl. Case No. Under Section Court Filed by No.

1. Case No.7033/2018 Sections 323, CJM Court, Petitioner FIR No.1127/2017 324 and 504 Gautam Budh No.2 – wife Nagar, UP

2. Case No.824 of Section 482 Allahabad High Respondent 2019 Cr.PC. Court No.2 – husband

3. Case No.20447 of Section 482 Allahabad High Petitioner 2019 Cr.PC. Court No.2 ☐ wife

4. Case No.1068/2015 Sections 498A, Mahanagar Petitioner (FIR No.130/2013) 406 and 323 IPC Magistrate No.2 – wife Court, Jaipur Mahanagar, Jaipur

5. Case No.292/2015 Section 12 of Metropolitan Petitioner the Protection Magistrate No.2 ☐ wife of Women from No.06, Jaipur Domestic Mahanagar, Violence Act, Jaipur

6. Case No.01/2020 Section 125 Family Court Petitioner / CrPC No.2, Jaipur wife

7. Case No.2359/2018 Section 13 ☐ B of Family Court Respondent the Hindu No.1, Jaipur No.2 ☐ Marriage Act, husband

8. Case No.546/2019 Section 13 ☐ B of Family Court Respondent the Hindu No.3, Jaipur No.2 ☐ Marriage Act, husband

9. Crl.Misc. Case Section 340 IPC Family Court Respondent No.114/2023 No.2, Jaipur No.2 ☐ husband

10. Custody Case Section 26 Family Court Respondent No.20/2021 No.2, Jaipur No./husband

8. The cases/legal proceedings at Sl.Nos.(1) to (6) and (9) above are hereby quashed; Cases at Sl. Nos.7, 8 and 10 above are dismissed.

9. Further, according to the agreement of the parties, Special Leave Petition (Crl.) No.286/2019, Special Leave Petition (Crl.) Dy. No.45408/2019 and Transfer Petition (Crl.) Nos.286-289/2021, pending on the file of this Court shall stand disposed of, in terms of the settlement agreement.

10. Since the parties have agreed mutually to end their matrimonial relationship, this Court in exercise of its power and jurisdiction under Article 142 of the Constitution hereby and in the interest of justice, dissolve their marriage.

11. The Registry is directed to draw a decree in the above terms and annex to the decree a copy of the Settlement Agreement (enclosed as Annexure `B') to the present application.

12. Petitioner No.2 (Pulkit Sahani) shall disclose her address and Cell Number in case of any change in future to Respondent No.2 (Vishal Kochhad). The total sum of 50,00,000/- in terms of the settlement agreement has been handed over by way of two demand drafts to the Petitioner No.2 (wife) in the Court today.

13. The Settlement Agreement dated 01-09-2023 shall form part of this order, and the decree to be drawn.

14. The Special Leave Petitions and pending applications are disposed of in the above terms.

.....J (S.RAVINDRA BHAT)J (ARAVIND KUMAR) NEW DELHI 18TH SEPTEMBER, 2023 IN THE SUPREME COURT OF INDIA EXTRAORDINARY JURISDICTION Special Leave Petition (Crl.) No.286/2019 MOHIT SAHNEY & ANR. Petitioner(s) VERSUS THE STATE OF UTTAR PRADESH & ANR. Respondent(s) WITH Special Leave Petition (Crl.) No.12744/2023 (@Special Leave Petition (Crl.) Diary No.45408/2019)
O R D E R

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3. This Court had issued notice to the parties on 07-01-2019 and directed stay of further proceedings pending before the Additional Chief Judicial Magistrate, Gautam Budh Nagar, Uttar Pradesh.

4. The parties, during the pendency of the proceedings, have negotiated and arrived at an amicable settlement. The terms of the settlement are contained in a document, copy of which has been annexed to the joint application moved by them (Criminal Miscellaneous Petition No.179131/2023).

5. In terms of the settlement, the parties have resolved all their differences. The Respondent No.2 – husband has agreed to pay a total sum of 50,00,000/- to Petitioner No.2 – wife. The settlement also records the arrangement agreed to by the parties with respect to custody and visitation rights and further that the parties have agreed that their marriage be dissolved by this Court. The application, supported by the affidavits of the parties, who are present in Court (i.e. Petitioner No.2 – wife and Respondent No.2 – husband).

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.....J (S.RAVINDRA BHAT)J (ARAVIND KUMAR) NEW DELHI 18TH SEPTEMBER, 2023 CORRECTED ITEM NO.49 COURT NO.8 SECTION II S U P R E M E C O U R T O F I N D I A RECORD OF PROCEEDINGS Petition for Special Leave to Appeal (Crl.) No.286/2019 (Arising out of impugned final judgment and order dated 11-04-2018 in CRLMA No. 14782/2015 passed by the High Court of Judicature at Allahabad) MOHIT SAHNEY & ANR. Petitioner(s) VERSUS THE STATE OF UTTAR PRADESH & ANR. Respondent(s) (IA No. 137363/2019 - EXEMPTION FROM FILING O.T., IA No. 185161/2018 - PERMISSION TO FILE ADDITIONAL DOCUMENTS/FACTS/ANNEXURES & IA No. 131043/2019 - PERMISSION TO FILE ADDITIONAL DOCUMENTS/ FACTS/ANNEXURES) WITH Diary No(s). 45408/2019 (II) (FOR CONDONATION OF DELAY IN FILING ON IA 198899/2019 & FOR EXEMPTION FROM FILING O.T. ON IA 198900/2019) Date : 18-09-2023 These matters were called on for hearing today. CORAM :

HON'BLE MR. JUSTICE S. RAVINDRA BHAT HON'BLE MR. JUSTICE UJJAL BHUYAN For Petitioner(s) Mr. Anil Nag, AOR Mr. John Mathew, AOR For Respondent(s) Mr. Sarvesh Singh Baghel, AOR Mr. Prashant Singh, Adv.

Ms. Radhika Diwedi, Adv.

Mr. Arun Pratap Singh Rajawat, Adv.

Mr. Rajiv Yadav, AOR UPON hearing the counsel the Court made the following O R D E R

1. Delay condoned in Special Leave Petition (Crl.) Dy.

No.45408/2019.

2. The Special Leave Petitions and pending applications are disposed of, in terms of the corrected signed order.

(VISHAL ANAND)
ASTT. REGISTRAR-cum-PS

(BEENA JOLLY)
COURT MASTER (NSH)

(Corrected Signed Order is placed on the file) ITEM NO.49 COURT NO.8 SECTION II S U P R E M E C O U R T O F I N D I A RECORD OF PROCEEDINGS Petition for Special Leave to Appeal (Crl.) No.286/2019 (Arising out of impugned final judgment and order dated 11⁰⁴2018 in CRLMA No. 14782/2015 passed by the High Court of Judicature at Allahabad) MOHIT SAHNEY & ANR. Petitioner(s) VERSUS THE STATE OF UTTAR PRADESH & ANR. Respondent(s) (IA No. 137363/2019 ☐ EXEMPTION FROM FILING O.T., IA No. 185161/2018 ☐ PERMISSION TO FILE ADDITIONAL DOCUMENTS/FACTS/ANNEXURES & IA No. 131043/2019 ☐ PERMISSION TO FILE ADDITIONAL DOCUMENTS/ FACTS/ANNEXURES) WITH Diary No(s). 45408/2019 (II) (FOR CONDONATION OF DELAY IN FILING ON IA 198899/2019 & FOR EXEMPTION FROM FILING O.T. ON IA 198900/2019) Date : 18⁰⁹2023 These matters were called on for hearing today. CORAM :

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Mr. Arun Pratap Singh Rajawat, Adv.

Mr. Rajiv Yadav, AOR UPON hearing the counsel the Court made the following O R D E R

1. Delay condoned in Special Leave Petition (Crl.) Dy.

No.45408/2019.

2. The Special Leave Petitions and pending applications are disposed of, in terms of the signed order.

(VISHAL ANAND)
ASTT. REGISTRAR-cum-PS

(BEENA JOLLY)
COURT MASTER (NSH)

(Signed Order is placed on the file)